

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

ORANGE AVENUE EXPRESS, INC., *Complainant*

v.

HAPAG LLOYD AG, *Respondent*.

DOCKET NO. 21-10

Served: February 18, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

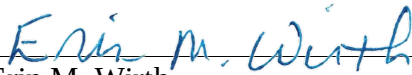
On February 10, 2022, Complainant Orange Avenue Express, Inc. and Respondent Hapag Lloyd AG filed a joint status report with proposed schedule. The discovery schedule proposed by the parties is reasonable. Joint status reports will be required in which the parties should outline progress made in discovery and whether settlement discussions have occurred, but not the parties' positions on settlement. The parties propose an in-person hearing at the conclusion of discovery. That request is denied at this time. The parties will be required to file a joint status report in May addressing why an in-person hearing is necessary, and proposing a schedule for briefing the merits. The parties have proposed a schedule that accommodates their conflicts and their proposed schedule is being accepted. The parties are expected to meet all of the deadlines in the schedule and should not expect that any requests for extensions will be approved.

The parties are hereby **ORDERED** to follow this schedule:

February 25, 2022	Complainant submits proposed protective order to Respondent.
March 11, 2022	Written discovery requests served. Parties file joint status report.
April 11, 2022	Responses to written discovery requests due.
May 12, 2022	Parties file joint status report with proposed briefing schedule.
June 20, 2022	Depositions begin.
July 15, 2022	Last day to serve written discovery. Parties file joint status report.
August 17, 2022	Simultaneous exchange of expert reports.
August 26, 2022	Rebuttal witness reports due.
August 31, 2022	Close of discovery.

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).


Erin M. Wirth
Chief Administrative Law Judge